OPEN PUBLIC PROPOSAL

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Meridian Economic and Infrastructure Charter

A proposal to constitute a listed development corporation, chartered by treaty to administer consented economic polygons across Southern Africa. By: Keith J. Maxwell

NAMIBIA • BOTSWANA • SOUTH AFRICA • ZIMBABWE • MOZAMBIQUE

PROPOSED COMPANY

Meridian Economic and Infrastructure Holdings

STATUS

Discussion document for governments, landowners, and long capital.

Not an offer of securities. Not a claim upon any state.

I

Historical Discussion

This paper proposes a company, not a country. It asks five sovereign governments — Namibia, Botswana, South Africa, Zimbabwe, and Mozambique — whether they will lease defined parcels of land, for a long term and for a fixed public revenue, to a corporation constituted to build, police, and commercially administer those parcels under a published charter.

The historical warrant is specific. In 1600 and 1602 the English East India Company and the Dutch United East India Company were joint-stock firms granted the powers of a small state: treaty, coin, court, and force. They were also, in the end, wound up by the governments that had chartered them. The nearer precedent is the British South Africa Company, chartered at London in October 1889 at the instance of Cecil Rhodes and modelled on the East India Company, not identical with it. The Company administered the territories that became Southern and Northern Rhodesia until 1923 and 1924. It then kept the railway and the mineral rights, and the settlers took responsible government. Administration ended. The commercial estate did not.

That second life is the part worth copying. A modern company cannot receive a royal grant of territory, and should not ask for one. It can receive a statute and a treaty. It can take land only from an owner who opts in. It can run a registry, a tax, a port, and a police force sworn under the host state's law. It can list its shares. It cannot conduct foreign policy, and it should be written so that it survives the day a host state takes the administration back.

> *The investable object is a corridor of consented polygons, not a flag.*

The economic occasion is also specific. Botswana has shown that mineral revenue, held under tolerably stable rules, compounds. Zimbabwe has shown the opposite: a commercial agriculture dismantled by seizure, a currency issued until it failed, and a title system investors will not finance. Mozambique recovered from war and then mislaid a hidden-debt scandal, while an insurgency still sits on the gas province. South Africa remains the industrial core of the region and the natural listing venue, and it is also the place where electricity, freight, and a formal unemployment rate near a third have become questions of administration rather than of geology. The proposal does not treat these records as a single failure, and it does not treat Botswana as a candidate for rescue. It treats them as a reason to offer a narrower instrument.

II

The proposition, in brief

Meridian Economic and Infrastructure Holdings — the working name — would be a publicly listed holding company, constituted under the Meridian Economic and Infrastructure Charter. Its charter is a stack of instruments, not a proclamation. Shareholders own the company. They do not own sovereignty.

Element	Terms proposed
Instrument	A constitutional document of the company, filed at the listing venue; a development treaty or statute with each host state; a lease or concession over each polygon; a stabilization clause with arbitration.
Term	Forty-nine to ninety-nine years on each polygon, renewable only by mutual consent. Land enters the registry only when the owner elects to incorporate it.
Powers inside the line	Commercial law, land and company registries, a capped tax, building and environmental rules, a zone police sworn under host statute, and a work-and-residence card.
Powers left outside	Criminal appeals, defense, citizenship of the host state, and foreign relations. The company may sign offtake contracts. It may not open embassies.
Public return	A fixed share of zone taxes and fees remitted to the host treasury, plus the option of a later equity stake. The host is not asked to fund the infrastructure.

Element	Terms proposed
Capital	Founding equity, then a listing once two treaties and one operating polygon exist. Infrastructure debt sits on the subsidiaries, secured on port, power, and lease revenue.

The company is designed to be dull in the places where chartered companies historically became dangerous. It does not raise an army. It does not coin a national currency. It does not claim the unalienated land of a chiefdom or a republic. Its police power is statutory and local. Its foreign relations are commercial. Its interesting feature is the opposite of conquest: one commercial code stretched across polygons that do not have to touch.

III

Historical enterprises / companies of the region

The Dutch company, chartered by the States-General in 1602, was the first firm to sell shares to the public on an exchange. The English company, chartered by Elizabeth I in 1600, began as a trading syndicate and became a territorial government in India. Both could make war, sign treaties, administer justice, and mint coin. Distance did the rest. A governor at Batavia or Calcutta was, for practical purposes, a sovereign with a board behind him in Amsterdam or London.

They were also extraction machines with a bad end. The VOC enforced a spice monopoly by force and was dissolved in 1799 under its debts. The East India Company was stripped of political power after the rebellion of 1857 and wound into the British state. A public proposal that quotes them as a model and omits the winding-up is a prospectus, not a history. The useful lesson is institutional, not sentimental: a joint-stock company can carry infrastructure into a territory the treasury will not fund, and it will abuse any power that is not fenced.

The British South Africa Company is the closer case, and it is a different company. Chartered in October 1889 for twenty-five years, and extended in 1915, it was instructed to push the railway north from Kimberley, encourage settlement, promote trade, and secure mineral rights, in return for protection offered to the chiefs with whom it treated. It occupied Mashonaland in 1890, broke the Ndebele kingdom in 1893, and gave its name to Rhodesia in 1895. The Jameson Raid and the rising of 1896 forced a review of the charter. Company rule in Southern Rhodesia ended in 1923, when the settler electorate chose responsible government over entry into the Union of South Africa. Northern Rhodesia passed to the Colonial Office in 1924. The Privy Council held in 1918 that the Company did not own the unalienated land; it had been the Crown's agent. What it kept was the commercial estate, and in Northern Rhodesia the mineral rights became valuable once the copper mines were opened.

Three facts follow, and the charter in this paper is written around them. First, administrative delegation is temporary; commercial title, if it is real title, is not. Second, a company that confuses the two will lose both, as the judicial finding on unalienated land already warned. Third, the railway was the asset that justified the risk. A modern charter that does not have a port, a power node, or a line of rail at its center is a free-zone brochure.

Year	Instrument	What endured, and what did not
1600	English East India Company	Royal charter. Trade, then territorial government in India. Political power ended after 1857.
1602	Dutch VOC	States-General charter. First listed joint-stock company. Dissolved in debt, 1799.
1889	British South Africa Company	Charter modelled on the East India Company. Administration of the Rhodesia's to 1923–24; mineral and rail assets retained.
2013–24	Honduras ZEDEs	Statute, not a charter. Court and Congress later unwound the framework. Stability agreements and treaty claims remain in dispute.

The Honduran zones are the contemporary warning, and they belong in the same table. A decade ago Congress created Zones for Employment and Economic Development with unusual commercial autonomy. In 2022 the framework was repealed; in September 2024 the Supreme Court held the constitutional amendments unconstitutional. One zone still operates on a fifty-year stability agreement and points to investment treaties. The lesson is not that delegated autonomy is impossible. It is that a statute alone is a weak fence. A polygon that matters must sit on a treaty, a recorded lease, and an arbitration clause a later ministry cannot quietly repeal.

IV

A regional partner with benefits

A framework of published series around 2024–2026.

State	Why it is, or is not, a first counterparty
Botswana	The region's better rule-set. Diamond revenue has been managed with more fiscal discipline than its neighbors. Growth is exposed to the diamond cycle, not to the collapse of title.
Namibia	A small, open economy with a working port at Walvis Bay and a serious claim on the Atlantic corridor. Unemployment is high; institutions are financeable.
South Africa	The industrial and capital-market core. Formal unemployment near 32 percent, growth near 1 percent, and a long electricity and freight failure. Still the natural place to list.
Zimbabwe	A former commercial farm economy broken by seizure and monetary issue. Title is the scarce asset. A polygon here is last, and only after arbitration is credible.
Mozambique	Post-war recovery, then the hidden-debt scandal, and an insurgency on the LNG coast. The corridor interest is Beira and Nacala, not a claim on the north.

The order of approach follows the ledger. Botswana and Namibia are the logical first counterparties, because a treaty with a state that already keeps its contracts is the reference case every later investor will read. South Africa can concession a logistics or energy polygon without transferring criminal jurisdiction; it already knows the industrial development zone. Mozambique's interest is corridor revenue it has struggled to capture. Zimbabwe is not excluded. It is sequenced. Fast-track land politics make an early polygon there unfinanceable, whatever the agronomic case.

V

Corporate character

The public conversation around chartered companies slides, within a paragraph, from a port concession into a protectorate. This proposal declines the slide. The distinctions are the charter.

It is	It is not
A listed holding company	A state, a government-in-exile, or a successor to any republic.
A lessee of opted-in parcels	An owner of unalienated land, communal land, or a national park.
A statutory zone police	A private army, or a force with jurisdiction past the polygon line.
A commercial agent abroad	A foreign ministry. No recognition, no defence pact, no seat anywhere.
A single commercial code	A merger of five countries, or a customs union imposed on them.
A revenue share to the host	A tax holiday extracted against the treasury. The remit is a term, not a favor.

Residents who do not opt in are not annexed. A farm that stays outside the polygon stays under the law it had on the morning the lease was signed. A worker who takes the zone card does not lose the citizenship of the host state, and does not acquire a new one. The company has no power to confer nationality. That single refusal removes most of the political fantasy, and most of the political danger.

VI

Articles of the proposed charter

What follows is a discussion text, written so that a ministry, a landowners' association, and a listing committee can argue with the same page. It is not a filed instrument.

Article 1 — Name and object

This instrument is the Meridian Economic and Infrastructure Charter. The company constituted under it, Meridian Economic and Infrastructure Holdings, is to acquire, by lease or concession only, defined polygons in the territories of participating states; to build and operate the infrastructure that makes those polygons one credit; and to administer commercial life inside them under the law this charter adopts.

Article 2 — Consent

No land enters a polygon except by a recorded instrument of the owner, noted in the host land registry. Communal and public land requires the additional consent of the authority that lawfully speaks for it. Silence is not consent.

Article 3 — Term

Each polygon lease runs for a term of not less than forty-nine and not more than ninety-nine years. Renewal is a new bargain. Expiry returns administrative delegation to the host. Commercial title lawfully acquired inside the term is not cancelled by expiry.

Article 4 — Law inside the line

Civil and commercial matters follow a common-law code published with the charter, or, at the election of a firm, the commercial rules of a named OECD jurisdiction. Criminal law remains the criminal law of the host state. There is no company offence of speech, worship, or peaceful assembly.

Article 5 — Force

The company may raise a police zone sworn under host statute, for public order inside the polygon. It may not raise armed forces. Homicide, treason, and extradition are heard in the host courts or a treaty tribunal, not in a company board.

Article 6 — Revenue

The company may levy a revenue tax on firms, a land-value charge on unimproved land inside the polygon, and fees for registry and port services. The total take is capped in the treaty as a share of zone output. A stated percentage is remitted quarterly to the host treasury, in the host currency or in dollars, at the host's election.

Article 7 — No expropriation

Land and improvements inside a polygon are not taken except for published public use, on notice, and against compensation fixed by the treaty tribunal before possession passes. A later statute of the host does not amend this article.

Article 8 — External affairs

The company may contract with buyers, lenders, and other companies. It may not purport to bind a host state, recognise a government, or station a representative as a diplomat. Correspondence with a foreign ministry goes through the host, unless the treaty says otherwise for a named commercial matter.

Article 9 — Listing and accounts

Ordinary shares may be listed on a market that already prices African infrastructure risk, with Johannesburg and London the intended venues. Audited accounts of the holding company and of each polygon subsidiary are published. Related-party contracts with directors are disclosed in the year they are made.

Article 10 — Reversion

A host state may resume administrative delegation on the terms of the treaty, against compensation for unrecovered infrastructure fixed in advance. The company is designed to remain as landlord, operator, or minority holder after that resumption. This article is the point of the charter.

VII

The proposed economic corridor

The company does not seek a province. It seeks a port, a rail spur, a power node, an industrial estate, and the farms or mines that contract to feed them. The parcels need not touch. What joins them is the code, the card, and the balance sheet.

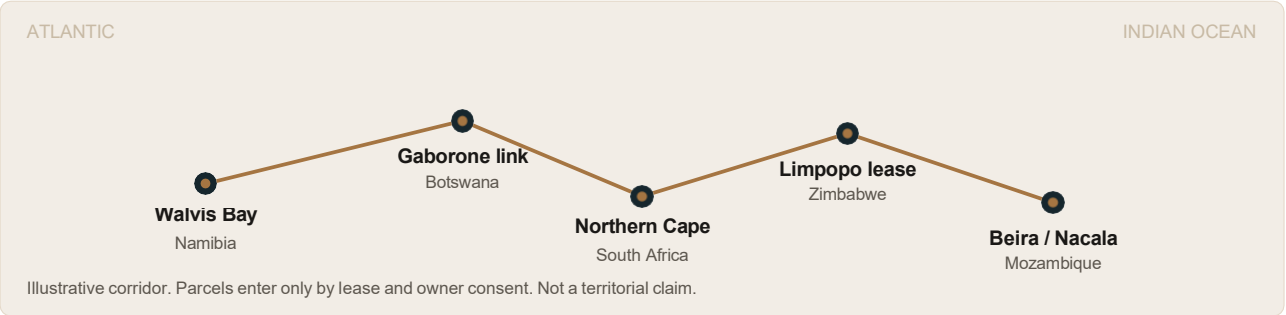


Figure. An illustrative meridian, west to east. Names mark functions, not claims. A real polygon is a surveyed lease, not a label on a sketch.

The first polygon should be boring enough to finance. A port estate at Walvis Bay, or an energy and logistics parcel on an existing South African industrial zone, or a fenced commercial farm title in Botswana where the owner wants a registry that a bank will read. The second polygon is what makes the company more than a free zone: a counterparty at the other end of the same line, so that a bill of lading and a crop contract can be written under one set of rules. Everything after that is optional and should be priced as optional.

Residents of a polygon are of three kinds, and the charter should say so on the gate. Owners who have opted in. Workers on the zone card, employed by a firm on the registry. Visitors under the host visa, who take the host law with them when they leave. There is no fourth category of subject.

VIII

The economic benefits of a merger for scale

Five countries do not need another secretariat. They need a place where a lender can read one title, one company, and one offtake. The merge this paper proposes is commercial.

One registry.

Land, companies, and security interests are recorded in a single electronic registry, mirrored in each host land office so that a domestic court can see the same page. A mortgage granted in one polygon is intelligible in another. This is the asset Zimbabwe in particular no longer has at national scale, and the asset a bank actually buys.

One card.

A skilled worker admitted to one polygon may work in another under the same card, inside the visa quotas the hosts have already agreed. The card is not a passport. It is a way of not running five immigration systems for one smelter and the port that ships its metal.

Shared works separately financed.

Rail, power, fiber, and port handling sit in subsidiaries. They sell to the polygons at a published tariff and to the host at the same tariff. The British South Africa Company was valuable, after it ceased to govern, because it still owned the line and the mineral right. The subsidiaries are that lesson, incorporated before anyone has to learn it again.

A tax a treasury can predict.

The published sketch, offered for argument and not as a promise, is a low tax on firm revenue, a charge on the unimproved value of land, no tariff at the polygon gate, and no tax on capital gains inside the zone. A fixed share — in the Honduran experiment, twelve percent of zone taxes and fees — goes to the host. The cap on what the company itself may collect should be written as a share of zone output, so that success does not become a private fisc.

IX

Capital and shareholder value

The company should not list on a sketch. Founding sponsors subscribe seed equity sufficient to negotiate two treaties and to open one polygon: survey, registry, counsel, and the first infrastructure contract. The listing follows audited revenue, not a roadshow narrative. Johannesburg is the home market, because the risk is regional and the investors who already price it are there. London is the second line, because the charter tradition this paper argues with was written in English company law, and because a dual listing is a discipline.

Ordinary equity owns the holding company. Project bonds, if they are issued, sit at the infrastructure subsidiaries and are secured on port, power, and lease revenue, not on a promise of sovereignty. A host state may take equity in lieu of part of the revenue share, or the reverse. Either bargain is cleaner than a carried interest that nobody can audit.

Shareholders are not buying a sovereign yield. The VOC and the East India Company both ended in debt, nationalization, or dissolution, and anyone who writes a charter in their shadow owes the reader that sentence. The claim on offer, once there is a claim, is cash flow from leases, tariffs, and mineral royalties under a treaty a tribunal can read. Directors who describe it as anything grander should not be directors.

Layer	Holder	What it funds
Seed	Sponsors	Treaty counsel, survey, first polygon opening. No public offer.
Listing	Public equity	Only after two host treaties and one polygon with audited revenue.
Works	Subsidiary debt	Secured on tariff and lease revenue. Non-recourse to the host.
Host	Revenue or equity	Quarterly remit, or a stake taken in lieu. Published either way.

X

A sequence that can be stopped

Each phase is a gate. If a gate does not open, the company does not invent a territory on the other side of it.

	Gate	What must be true before the next
1	Constitute	Incorporate. Publish this charter as a filed object. Open talks with Botswana and Namibia. Claim no land.
2	First polygon	Sign one lease the host already half-wants. Stand up the registry, the sworn police, and the quarterly remit.
3	List	Audit the first polygon. Offer ordinary shares. Use the proceeds on the corridor link, not on a second flag.
4	Second state	Add a South African or Mozambican polygon by a separate treaty. One code, two treasuries.
5	Zimbabwe, if title is real	A leasehold polygon only where arbitration and title insurance are credible. Not before.
6	Reversion, rehearsed	Within ten years, offer each host an equity stake or a revenue swap, so resumption of administration is a contract, not a crisis.

The sixth gate is the one the historical companies failed in public. The British South Africa Company spent the years before 1923 defending a charter it was going to lose, and only afterwards discovered that the mineral right was the business. This company should write the ending into the beginning. A host that resumes the police and the court, and leaves the lease and the tariff, has not ruined the shareholder. A company that cannot describe that day is asking for a concession no serious cabinet will sign.

XI

Risks, stated as terms

The risks are not a schedule at the back of a prospectus. They are the reason several articles exist.

Risk	How the charter treats it
Political reversal	A later government repeals the statute. Mitigation is treaty, not hope. Honduras is the worked example. Article 7 and the stability clause are the fence; they are not a guarantee.
Title	Opted-in land that was not the owner's to opt in. Mitigation is a host registry mirror and title insurance before a dollar of works is sunk.
Security	A polygon on a corridor an insurgency can close. The company does not take Cabo Delgado. It does not pretend a zone police is an army.
Capture	Directors who become a court. Related-party disclosure, a capped take, and a board that does not sit as the appeal. Article 5 is there so that this risk has a name.
Currency	Remittances in a unit the host can issue without limit. The host elects the currency of payment; the company may hedge. It does not issue one.
Nostalgia	Investors who think they are buying Rhodesia. They are not. The settler electorate of 1922 chose self-government, and the Company kept the mine. That is the whole story worth owning.

XII

An invitation to all for economic and social prosperity

To the governments. The request is a negotiating mandate, not a signature. A ministry that is willing to discuss one polygon, on the articles above, is a sufficient answer to this paper. A ministry that is not, is not a target. There is no second approach by other means.

To landowners. The polygon grows by your instrument or it does not grow. A title you do not wish to place inside the registry stays where it is, under the law you have. The company will publish the form of opt-in before it asks anyone to sign it.

To capital. Seed subscriptions are invited from institutions that will read a treaty before they read a rendering. There is no offer in this document, and no price. A listing, if it comes, will come with audited revenue and a prospectus that repeats the risks in Section XI without softening them.

To residents and to those who will not be residents. The social claim is modest, and it should stay modest. Inside the line: a registry a bank will lend against, a police force with a statute behind it, a tax that is short enough to publish on one page, and a card that lets a fitter move from one parcel to another without five queues. Outside the line: nothing changes, except the quarterly remit to a treasury that did not have to build the port.

> *The company is offered as a lessee with a published fence. It is refused as a sovereign.*

Correspondence on this draft may be addressed to the promoters of Meridian Economic and Infrastructure Holdings. Until a company is incorporated, that name is a description, not a person. Amendments from a host ministry, a landowners' body, or a listing committee are the point of publishing it.

NOTE ON SOURCES AND STATUS

Historical dates follow the public record of the English East India Company (charter 1600; political power ended after 1857), the Dutch United East India Company (charter 1602; dissolved 1799), and the British South Africa Company (royal charter October 1889; administration of Southern Rhodesia ended 1923, of Northern Rhodesia 1924; Privy Council on unalienated land, 1918). The Honduran ZEDE framework was created by constitutional reform in 2013, repealed by Congress in 2022, and held unconstitutional by the Supreme Court in September 2024; named zones and their treaty claims remained in dispute thereafter. Economic characterisations of Botswana, Namibia, South Africa, Zimbabwe, and Mozambique are summary judgments on a published record, not a statistical release. This paper is a discussion document. It is not a prospectus, not an offer of securities in any jurisdiction, and not a claim upon the territory or the foreign relations of any state.

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